Tokei, june 30th 1874.

Your Excellency

I have the honor to hand you a memo to serve in framing a reply to the Tsung-li-yamen's despatch of the 26th day, 3rd month, 13th year of Tung-chi.

Much that cannot find place in this reply might be explained with advantage, in conferences with the members of the Tsung-li-yamen by the Japanese Minister at Peking, and by the person intrusted to conduct the negociations with the Imperial commissioner sent to Formosa. For instance, that the object of Japan in sending a mission to aboriginal Formosa, is to set at rest the apprehensions which China and Japan as well, can not keep feeling, while aboriginal Formosa remains

remains in the disturbed state in which it has been for two hundred years past, that, sooner or later, some western power may find in the wrongs inflicted upon them by the Formosans, and in the absence of any regular form of government there, a too just pretext for making a new settlement upon the Asiatic coast. Now Japan has the same interest to keep herself free from any undue American or European influence that the United States have to prevent the spread of foreign influence in America, and the European countries in Europe. Although Japan has determined to change her customs, she intends doing so in her own way, which she could not do were any western nation to obtain over her people, by acquiring extensive possessions on or near her coast, an influence that would

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would counterbalance her own. For the day when this would happen would see the prestige of her government disappear and, with it, all prestige of authority in a land whose people have not yet learned to govern themselves: and a state of anarchy might follow from which foreign nations would be by far the heaviest sufferers. On the other side, with the establishment of steam and Telegraphs, the necessity for foreign nations to acquire territory whereon to locate military or naval stations for the protection of their trade in Asiatic quarters, has ceased to exist; and it would be no more reasonable of them to ask of Japan such privileges in Asia, than it would be for the United states, for instance, to ask of a European power similar privileges in Europe

Europe.

If anything can remove the objections which China still has to having Japan as a neighbour in Formosa, it would be these ideas, well presented and amplified by the Japanese Minister to Peking.

In my opinion a great mistake was committed by Mr Yanagiwara when he consented to negociate with the Imperial commissioner's deputy at Shanghai. He was accredited to the court of Peking, not to that officer or to the commissioner, whose mission was to meet General Saigo or his assistant. These two officers, in connection with the viceroy of Fuh-kyen, might have negociated subjected to the approval of their government, whom they could not bind, and who, after the question in dispute had been fully discussed, might have given

given instructions to their representatives at Peking to make a convention. Had affairs been conducted in this way, much time would have been gained by Japan, during which, without the slightest risk of disturbing the peace between the two countries, the preliminary arrangements for the conquest of Aboriginal Formosa, from December to June next, might have been completed.

What may yet be done to come to a friendly understanding with China, in conformity with the original plan laid down before the departure of the mission from Yokei, without detriment to the honor or dignity of Japan, and without losing the benefit derived from the friendly relations which have been established with the aborigines and the victories gained by

by H. I. M.'s troops in Formosa under the able guidence of General Saigo and his assistants, your Excellency, is fully able to determine. Should your Excellency, however, desire me to express my views, I need not say that I am ready to do so at any time I may be sent for.

I have the honor to be
your Excellency's
most obedient humble servant.
Chs. W. Legendre.

His Excellency
Okuma Shigenobu
Minister of Colonization
etc. etc. etc.

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第三拾二号覚書 支那總理衙門ヘ掛合ニ答フベキ文案

Memo. No 32.

to serve in framing a reply to the despatch of the Tsung li yamen of the 26th day, 3rd month, 13th year of Tung-chi.

Having quoted the Tsung-li-Yamen's despatch, H. E. Terashima might well say:—

From the above despatch it plainly appears that when Minister Soyeshima was in Peking he said, through Interpreter Tei, that "the intention of Japan in sending a mission to the Formosan Savages was only to request from them the good treatment of her people in the future should they ever go to their district, and not in any way to make war upon them;" that these words were received by you as "a token of good relations between China and Japan;" and that the result of the Minister's message was "the clearing away at once

ance of all distrust, if any on both sides."

This happy impression created by Minister Soyeshima's declaration relative to the sending of a mission to Aboriginal Formosa seems to have been somewhat regrettably affected by the view which the court of Tokei takes of the relations of the country where the aborigines live towards China, and by the manner in which the idea of sending the mission has been carried into effect by my government.

Regarding the first point I would state:

Minister Soyeshima says that shortly after his arrival in Peking, he met the American Minister, and heard from him that your government disclaimed all jurisdiction over Aboriginal Formosa, this declaration having been recently made to Mr. Low by your Excellencies

at a conference where he had requested your Excellency's honorable government to erect a light house within the limits of the Koalats territory in Southern Formosa near a spot where the crew of the American barque "Rover" was murdered in 1867. Therefore Minister Soyeshima now says that when he received your Excellencies declaration that your government declined jurisdiction over the aboriginal territory, the fact that you did so was so generally known and admitted that he thought it useless to discuss it further with you and to request you to consign it to paper in an official communication.

As it is, I have no other evidence of what passed between the Minister Soyeshima and your Excellencies than his word and your own letter, which

do

do not tally. But I have a record of a conversation that passed between Minister Soyeshima and Mr. Low, in a despatch from Mr. Low to the American Secretary of State published in the Diplomatic correspondence for 1873, page 188, and of which the following is an obstract.

There are, he (Mr. Soyeshima) says only two questions of importance which "he desires to discuss with the Chinese government."

First, whether China is responsible for the act of the aborigines on the island of Formosa. If the government answers this question in the affirmative, he will then demand redress and indemnity for the murder of some natives of Lochoo, who were wrecked there a year and more ago. If the answer is in the negative, notice will then be given that

Japan

japan proposes to send a military force to Formosa to chastice the savage and semicivilized tribes that practically hold undisputed possession of the larger part of the island; and, as there are no safe harbors on that part of the island where the Aborigines reside, permission will be asked to land troops at one of the ports open to trade, and to march them through Chinese territory that lies between the points where the troops are intended to operate against the savages." It may not be altogether unnecessary to state here that your alleged declaration to Minister Soyeshima concerning aboriginal Formosa agrees with the statements which appear to have been made by the governor of your possessions in the island to U. S. officers in 1867. (see report of the Secretary of the Navy.

1867. Page 7. lines 40 to 44; also U. S. commercial relations 1871. Page 166. lines 60 to 68). In support of these statements I may be permitted now to refer you to your own maps. whereon, of all that was known of the island of Formosa by the Dutch in 1635,(a) only the portion conquered by Koxinga in 1662.(b) and afterwards ceded to the Chinese crown in 1682.(c) that is to say, the northern and a portion of the western coast, is marked. (See atlas of Chang sue King 16th year of Kia Kiang, map made by the jesuits de mailla and Kenderer by order of the Emperor Kanghe in the 50th year of his reign, and the Taiwan Tje, (a work but recently published) For it is but natural to suppose that, if aboriginal Formosa were a part of your organized territory, or a continuation of your wild dominions

dominions, you surely would have marked it on your maps, in the same way as you have marked all the regions, occupied by Aboriginal tribes not yet civilized, which lie on the borders of Canton, Kwan-le, Kunan and Kupeh again, if aboriginal Formosa were a portion of your Empire, it is difficult to explain why you permitted western nations to make war upon its inhabitants, or to negociate with them, or why you invited Japan to go and negociate with them for the granting of rights which you alone, as sujerains or direct rulers, would be justified in obtaining directly from them. The title which H. I. C. Majesty undoubtedly has to

(a) 15th year of Het-sung.
(b) 1st year of Kang-he.
(c) 20th year of Kang-he.

to his settlements in Formosa was derived by conquest. If he has any rights over the other portion of the island, then it must be that he has very lately conquered it, or else formally annexed it in conformity with the laws and usages of nations and I can find no records of his having done either.

However this might be, I would have promptly notified H. I. C. M.'s government of the departure of the mission through our Minister had we had one in Peking, or through your own, had your Excellencies' government had a representative residing in Tokei. That this was not done is more apt to show the inconveniences of imperfectly established diplomatic relations than to show any want of regard for

International

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international obligations on the part of japan towards China. As it was, inasmuch as the government of the Mikado found convenient places to land our troops in the Aboriginal portion of the island, and therefore had no special request to address you regarding the use of one of your own harbors in Southern China, as was first intended by Minister Soyeshima, it was thought sufficient that the Japanese High Commissioner should forward the message to the Viceroy of Fuh Kyen and his subordinate, the Taotai of Taiwan. In this letter, copy of which has doubtless been forwarded to Peking, the object of the mission was clearly stated; and in it nothing can be found but the most friendly feelings from my government towards your own.

Your greatest cause of complaint, howeve, as shown by your letter, seems to arise from the fact that the mission was accompanied by a large force of soldiers, whose object was to protect it in its pacific labors. This, you will admit, I hope, bears no evidence of any evil design. The aborigines of Formosa live, as you state, in a certain portion of an island lying afar off amidst the sea, and they have not yet been restrained by any legislation, nor had any government been established over them. Therefore it was hardly to be supposed that the Japanese negociators would be safe amongst them unless they were followed by a large escort. My government was still more strengthened in viewing the position in this way from the fact that, amongst other customs still retained by these aborigines, is one

one of cutting off the head of any stranger who may land on their shores. To check this practice, the British Captain Brood, who went there in 1867, thought it necessary to provide himself with an escort of several tens of men (a), and a man of war. But he was fired into by the savages, and was compelled to retire without accomplishing anything. Such was also the case with the American Admiral Bell, who was accompanied by two armed boats, one of them a large frigate, mounting many heavy guns, and several hundred soldiers and four English guides and although his force was much greater than that of Captain Brood he was unable even to meet the savages face to face and negociate with them, but was obliged to reembark his men the same day he had landed them.

(a) a chinese expression.

When

When the U. S. Consul at Amoy, in the month of September of the same year, proceeded to Lialiao, he took with him an escort of Chinese soldiers, which had been given him by the Governor of Taiwan in order to keep friendship with the United States, and which, as will appear from the records, was four times greater than that taken by Admiral Bell.

And when, in 1872, the U. S. consul again went to Southern Formosa, to investigate the causes of the murder of our countrymen he had a large American ship-of-war stationed at Lialiao; besides which, there were several American war vessels at Hong Kong, Amoy and Foochow ready to give him assistance in case he should need it. Now the Boutans being ten times stronger than the eighten tribes under Tanketok

ing

the government of the Mikado thought it advisable to furnish its High commissioner with a larger force than was ever before sent to those shores; and as General Legendre, who is now in our service, was obliged to return to Tokei on important business, and he could not go with the mission as had been intended, the services of other foreigners who, like him, were well acquainted with the circumstance of that coast, which was as perfectly unknown to you, were secured. In all this, I can see nothing upon which your Excellencies can put any hostile construction; and I hope that, upon further consideration, your Excellencies will coincide with me in saying that nothing has been done by H. I. J. M.'s government which should arose your

suspicions

suspicions or wound your feelings

As to the report spread in Peking by the foreign ministers, we believe it to be founded upon the fact that having already settled the subject of the mission with your Excellencies through Minister Soyeshima, the government of the Mikado thought it unnecessary to acquaint the foreign representatives with the object of the Mission, unless they called upon us for information and some of them may have inferred from our silence that the mission was a secret one, covering some evil design against your honorable country, such as an attack upon your settlements in Formosa, while the paragraph of a letter addressed to the Minister Burlingame in 1867, in reference to the murder of the crew of the barque "Rover," and which

Letter

letter has since been published in the American Diplomatic Correspondence, may have awakened the same idea in the minds of others.

The paragraph of the letter alluded to reads as follows:

"2. You are instructed to report whether the Chinese Government is established in any or in what degree in the region where the atrocious transaction took place. If clearly so, then to demand investigation and punishment, with such indemnities as are possible."

"3. If no organized government exisists, you will suggest what form of proceeding should be adopted with a view to obtain redress and prevent such transactions in future."

While, in justice to your Excellencies government and to ourselves, I feel it my duty to commend the last

last paragraph of this letter to your Excellencies full consideration, I need not add that I can frankly declare that in sending a mission to Aboriginal Formosa, our object is simply to establish friendly relations with the natives and achieve the work of pacification of that hospitable coast, thereby putting to an end all causes of conflict between its inhabitants and foreign forces; and in the name of my government, I emphatically protest against any design on our part of encroaching upon your possessions in Formosa, the earnest wish of Japan being that China may forever remain in the undisturbed enjoyment of the same.

Trusting that in this declaration your Excellencies may find a new proof of the sympathy and sincere friendship

friendship entertained by our government towards yours, and by our people towards your people, I send you the new assurance of my high consideration and respect.

Tokei, june 30th 1874.

Respectfully submitted

Chs. W. Legendre.

His Excellency
Okuma Shigenobu
Minister of Colonization
etc. etc. etc.

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